

Shiva Puri Goswami v. Purvanchal Vidhut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 22 May 2024 · 2024:AHC:93051-DB · Writ - C No. 17555 of 2024 · **Writ disposed of; Clause 6.5 application to be decided in accordance with law.**

HEADNOTE

Where a consumer's application under Clause 6.5 of the U.P. Electricity Supply Code, 2005 remains pending and a check meter has been installed, the High Court will not decide the billing dispute on the writ and will only direct the licensee to dispose of that application in accordance with law, preferably within three months.

FACTUAL SUMMARY

Shiva Puri Goswami petitioned the Allahabad High Court against Purvanchal Vidhut Vitran Nigam Ltd. while his application dated 3 February 2024 under Clause 6.5 of the U.P. Electricity Supply Code, 2005 remained pending. Counsel submitted that, pursuant to that application, a check meter had been installed on 18 May 2024. The Division Bench heard both sides and disposed of the writ without examining the metering or billing controversy on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending Clause 6.5 application

HOLDING

A pending application under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is to be decided by the licensee in accordance with law; the High Court will not itself adjudicate the dispute while that application remains pending and will only direct expedition, here preferably within three months. ¶ 1-2

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

Where a consumer's application under Clause 6.5 of the U.P. Electricity Supply Code, 2005 remains pending and a check meter has been installed, the High Court will not decide the billing dispute on the writ and will only direct the licensee to dispose of that application in accordance with law ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 BILLING OR METERING DISPUTE

The Court recorded that the application was pending and a check meter had been installed, and left the issues raised to be considered by the licensee. ¶ 1-2